

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 865

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE PUBLIC UTILITIES COMMISSION; AMENDING SECTION 61-207, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING CERTAIN EX PARTE COMMUNICATIONS; AMENDING SECTION 18-1356, IDAHO CODE, TO REVISE A PROVISION REGARDING GIFTS TO PUBLIC SERVANTS BY PERSONS SUBJECT TO THEIR JURISDICTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 61-207, Idaho Code, be, and the same is hereby amended to read as follows:

61-207. COMMISSIONERS AND EMPLOYEES -- OATH -- QUALIFICATIONS -- RESTRICTIONS ON POLITICAL ACTIVITY -- EX PARTE COMMUNICATIONS. (1) Each commissioner shall devote his entire time to the duties of his office and shall, together with each person appointed to a civil executive office by the commission, before entering upon the duties of his office, take and subscribe to an oath to the effect that he will support the Constitution of the United States and the state of Idaho, and faithfully and impartially discharge the duties of his office as required by law and that he is not interested directly or indirectly in any public utility embraced within the provisions of this act; or any of its stocks, bonds, mortgages, securities or earnings.

(2) Each commissioner shall be a qualified elector of this state, and no person while in the employ of or holding any official relation to any corporation or person, which said corporation or person is subject in whole or in part to regulation by the commission, and no person owning stocks or bonds of any such corporation or who is in any manner pecuniarily interested therein shall be appointed to or hold the office of commissioner or be appointed or employed by the commission: provided, that if such person shall become the owner of such stocks or bonds or become pecuniarily interested in such corporation otherwise than voluntarily, he shall within a reasonable time divest himself of such ownership or interest; failing to do so, his office or employment shall become vacant.

(3) No commissioner shall, directly or indirectly, while he is a member of said commission, take any part in politics by advocating or opposing the election, appointment or nomination of any person or persons to any office in the state of Idaho, excepting under officers in the commission, nor shall any commissioner seek appointment or election or nomination for any civil office in the state of Idaho, other than commissioner, while he is a member of said commission, nor shall any commissioner seek appointment, nomination or election to any civil office in the state of Idaho, other than that of commissioner, for a period of two (2) years from the date of the expiration of his term or after his resignation or removal from said office.

1 (4) The following provisions shall apply to any ex parte communications
2 directed to or originating from the commission, or any person employed by the
3 commission:

4 (a) No commissioner, or any person employed by the commission, shall,
5 directly or indirectly, solicit, invite, encourage, or consider any
6 communication from any person concerning the merits of any matter pend-
7 ing before the commission or reasonably expected to come before the
8 commission, unless such communication is made in the course of an offi-
9 cial proceeding or is reduced to writing and made a part of the records
10 of the commission.

11 (b) No public utility or agent thereof, party appearing before the
12 commission, lobbyist registered pursuant to chapter 7, title 74, Idaho
13 Code, representing a public utility, or attorney representing a public
14 utility shall, directly or indirectly, make any communication to any
15 commissioner, or any person employed by the commission, concerning the
16 merits of any matter pending before the commission or reasonably ex-
17 pected to come before the commission, unless such communication is made
18 in the course of an official proceeding or is reduced to writing and made
19 a part of the records of the commission.

20 (c) The provisions of this subsection shall not apply to communications
21 limited solely to ministerial or scheduling matters or statements made
22 in a public hearing or other proceeding duly noticed by the commission.

23 (d) If any communication in violation of this subsection is received by
24 a commissioner, or any person employed by the commission, such commis-
25 sioner or employee receiving the communication shall create a written
26 summary of the communication and within seven (7) business days place
27 such summary in the records of the commission and transmit a copy of such
28 summary to any party before the commission who is adverse to the person
29 making such ex parte communication.

30 (e) Any person who violates any provision of this subsection shall
31 be subject to a civil penalty not to exceed two hundred fifty dollars
32 (\$250) if an individual and not to exceed two thousand five hundred dol-
33 lars (\$2,500) if a person other than an individual. The burden of proof
34 for such civil liability shall be met by showing a preponderance of the
35 evidence. The attorney general or the appropriate prosecuting attor-
36 ney may prosecute any violations of this subsection. Prosecution for
37 a violation of this subsection shall be commenced within two (2) years
38 after the date on which the violation occurred. Venue for prosecution
39 pursuant to the provisions of this chapter shall be in the county of
40 residence of the defendant if the defendant is a resident of the state of
41 Idaho, otherwise venue shall be in Ada county.

42 SECTION 2. That Section 18-1356, Idaho Code, be, and the same is hereby
43 amended to read as follows:

44 18-1356. GIFTS TO PUBLIC SERVANTS BY PERSONS SUBJECT TO THEIR JURIS-
45 DICTION. (1) Regulatory and law enforcement officials. No public servant in
46 any department or agency exercising regulatory functions, or conducting in-
47 spections or investigations, or carrying on civil or criminal litigation on
48 behalf of the government, or having custody of prisoners, shall solicit, ac-
49 cept or agree to accept any pecuniary benefit from a person known to be sub-

1 ject to such regulation, inspection, investigation or custody, or against
2 whom such litigation is known to be pending or contemplated.

3 (2) Officials concerned with government contracts and pecuniary trans-
4 actions. No public servant having any discretionary function to perform in
5 connection with contracts, purchases, payments, claims or other pecuniary
6 transactions of the government shall solicit, accept or agree to accept any
7 pecuniary benefit from any person known to be interested in or likely to be-
8 come interested in any such contract, purchase, payment, claim or transac-
9 tion.

10 (3) Judicial and administrative officials. No public servant having
11 judicial or administrative authority and no public servant employed by or in
12 a court or other tribunal having such authority, or participating in the en-
13 forcement of its decisions, shall solicit, accept or agree to accept any pe-
14 cuniary benefit from a person known to be interested in or likely to become
15 interested in any matter before such public servant or a tribunal with which
16 he is associated.

17 (4) Legislative and executive officials. No legislator or public ser-
18 vant shall solicit, accept or agree to accept any pecuniary benefit in return
19 for action on a bill, legislation, proceeding or official transaction from
20 any person known to be interested in a bill, legislation, official transac-
21 tion or proceeding.

22 (5) Exceptions. This section shall not apply to:

23 (a) fees prescribed by law to be received by a public servant, or any
24 other benefit for which the recipient gives legitimate consideration or
25 to which he is otherwise legally entitled; or

26 (b) gifts or other benefits conferred on account of kinship or other
27 personal, professional or business relationship independent of the of-
28 ficial status of the receiver; or

29 (c) trivial benefits not to exceed a value of fifty dollars (\$50.00) in-
30 cidental to personal, professional or business contacts and involving
31 no substantial risk of undermining official impartiality; provided,
32 however, that for any commissioner or employee of the Idaho public util-
33 ities commission, such trivial benefits shall not exceed a value of
34 twenty dollars (\$20.00); or

35 (d) benefits received as a result of lobbying activities that are dis-
36 closed in reports required by chapter 7, title 74, Idaho Code. This ex-
37 ception shall not apply to any activities prohibited by subsections (1)
38 through (4) of this section.

39 (6) Offering benefits prohibited. No person shall knowingly confer,
40 or offer or agree to confer, any benefit prohibited by the foregoing subsec-
41 tions.

42 (7) Grade of offense. An offense under this section is a misdemeanor
43 and shall be punished as provided in this chapter.

44 SECTION 3. An emergency existing therefor, which emergency is hereby
45 declared to exist, this act shall be in full force and effect on and after
46 July 1, 2026.